

TENTATIVE RULING(S) FOR August 14, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2331240

Tavares v. Astorga et al

TENTATIVE RULING(S):

Before the Court is Defendant Walmart's Motion to Compel Independent Mental Examination ("IME") of Plaintiff. On July 31, Astorga joined Walmart's motion.

On August 4, this Court held an ex parte hearing and moved up the date for hearing on the pending motion. The Court required Plaintiff to file any opposition by August 10, 2026, and required Defendants to file any reply by August 12, 2026.

Plaintiff filed her opposition on August 10, 2026. Plaintiff represents that she has agreed to the at-issue IME with Defendants' chosen expert, Dr. Judy Ho, and that she will appear on August 17, 2026—the date selected by Walmart. Plaintiff contends that the remaining dispute concerns

limitations on the terms and scope of the IME, including the length of the examination, exchange of test data, and related scheduling and reporting deadlines.

Defendants filed a reply. Defendants contend Plaintiff's proposed limitations are not workable under professional and ethical standards and submit a declaration from Dr. Ho in response.

After consideration of the parties' briefing and submissions, the Court finds good cause to grant Defendants' motion.

I. Summary of Positions

In opposition, Plaintiff states that she does not dispute that an IME should occur. Plaintiff instead seeks to finalize terms governing the examination and proposes a compromise position that includes, among other things: (1) a seven-hour examination exclusive of breaks; (2) an expert-to-expert-only exchange of raw test data; and (3) a report deadline intended to allow Dr. Ho more than three weeks to prepare her report while ensuring production at least two business days before the September 15, 2026 mediation. Plaintiff further proposes that Dr. Ho be permitted to administer the full testing battery originally proposed by Walmart, subject to a seven-hour examination limit, with Dr. Ho allocating time among the tests as she deems appropriate.

In reply, Defendants argue Plaintiff's proposed modifications do not meet appropriate professional and ethical standards and request that Plaintiff proceed to the IME in accordance with Dr. Ho's original joint stipulation conditions and the Stipulation and Highly Sensitive Protective Order.

II. Merits

Plaintiff does not contest the merits of the motion as to whether an IME should be compelled, given Plaintiff's mental health condition and the mental health damages at issue in the underlying action.

Plaintiff further argues the Court should not consider Dr. Ho's declaration submitted with Defendants' reply. However, the Court has discretion to accept reply declarations. *See Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538; *RGC Gaslamp, LLC v. Ehmcke Sheet Metal Co., Inc.* (2020) 56 Cal.App.5th 413, 432 (holding that reply briefs that do "not contradict" earlier

statements, but “instead offer[] texture to rebut” are permitted); *Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1308.) The Court, in its discretion, considers and relies upon the declaration submitted with the reply. Dr. Ho’s declaration addresses why certain elements of testing and data are necessary for her to complete a sufficient examination. The Court finds that Defendants have established good cause and produced specific facts justifying the requested discovery and that the inquiry is relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. Accordingly, the Court declines to adopt Plaintiff’s contested compromise limitations and instead orders the IME on the terms that allow a seven-hour examination exclusive of breaks and implement Dr. Ho’s medical standard of testing.

RULING

Defendant Walmart’s Motion to Compel Mental Examination is GRANTED.

1. Plaintiff shall submit to a mental examination by Defendants’ retained expert, Dr. Judy Ho, on August 17, 2026, unless otherwise ordered by the Court.
2. The IME shall be limited to a seven-hour examination exclusive of breaks.
3. The IME shall proceed using Dr. Ho’s medical standard of testing, including administration of the applicable testing battery as required for a sufficient evaluation, subject to the seven-hour limit.
4. Astorga’s joinder is GRANTED.

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CIVSB2528167

Doe vs Rialto

TENTATIVE RULING(S):

On November 26, 2025, Defendant Rialto Unified School District (RUSD) filed this present demurrer to the fourth cause of action for failure to warn, train or educate; the seventh cause of action for IIED; and the ninth and tenth causes of action. RUSD also moved to strike certain allegations. An amended notice was filed on December 3, 2025. The Plaintiff also dismissed Defendant Carlos Torres without prejudice on December 3, 2025.

On April 22, 2026, Plaintiff filed an opposition to the demurrer and motion to strike together with the declaration of Christina J. Nolan, Esq. A second declaration was filed by Ms. Nolan on April 23, 2026, attaching the complaint.

On April 27, 2026, RUSD filed a reply.

On July 9, 2026, the Court continued the hearing on these motions at the request of plaintiff's counsel. The Court received and reviewed Plaintiff's Supplemental Brief in opposition to Defendant's Motion to Strike, as well as Defendant's Reply to the Supplemental Opposition. Having considered all the submissions to date, the Court stands by its earlier decision issued on July 9th as follows:

Analysis

General Requirements for Public Entity Claim. A public entity is liable only to the extent expressly provided by statute. (*Guzman v. County of Monterrey* (2009) 46 Cal.4th 887, 897.) The statutory law outlining potential liability of public entities is set forth in Government Code §§ 815 through 818.9. The statutory law outlining potential liability of public employees is set forth in Government Code, §§ 820-823. These provisions are all part of the Government Tort Claims Act.

The Tort Claims Act was enacted in 1963 following the California Supreme Court decision of *Muskopf v. Corning Hospital District* (1961) 55 Cal.2d 211:

"which abolished the doctrine of governmental tort immunity. Government Code section 815 restores sovereign immunity in California except as provided in the Tort Claims Act, or other statute. Thus the intent of the act is not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances: immunity is waived only if the various requirements of the act are satisfied." (*Williams v Horvath* (1976) 16 Cal.3d 834, 838.)

Government Code, § 815 states:

Except as otherwise provided by statute:

(a) A public entity is not liable for an injury whether such injury arises out of an act or omission of the public entity or a public employee or any other person.

(b) The liability of a public entity is subject to any immunity of the public entity provided by statute and is subject to any defenses that would be available to the public entity if it were a private person.

The Legislative Committee Comment to 815 and decisions of the California Supreme Court both confirm that Section 815 abolishes common law tort liability for public entities. (*Miklosy v Regents of University of California* (2008) 44 Cal.4th 876, 899.) The language of Section 815 makes clear “the intent of the Tort Claims Act is to confine potential governmental liability not, expand it” (*Eastburn v Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1179) and “to confine potential governmental liability to rigidly delineated circumstances...” (*Zelig v County of Los Angeles* (2002) 27 Cal.4th 1112, 1127.) A cause of action against a public entity must identify the grounds for statutory liability against the public entity. (See California Government Tort Liability Practice (4th ed. Cal CEB), § 8.43.)

Fourth Causes of Action for Failure to Warn, Train or Educate. This cause of action is listed in the Complaint at ¶¶ 107-111. After asserting causes of action for negligent hiring and retention, Plaintiff asserts this cause of action for failure to warn, train or educate, asserting that Defendants owed Plaintiff a duty to take reasonable, protective measures to protect Plaintiff and other minor students from the risk of childhood sexual harassment, molestation and abuse by properly training and educating students as to the risk.

RUSD argues there is no statutory enactment that creates Gov. Code, §815.6 direct liability. Section 815.6 provides in full: “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” (Gov. Code, § 815.6.) The Complaint states no mandatory duty to warn, train or educate which would allow direct liability. The demurrer and reply indicate there is a new bill that went into effect this year requiring the State Department of Education to start working on a plan to eventually train student regarding sexual abuse. (See Dem. at p. 7:15-17; Reply at p. 2:9-11.) As for Government Code section 815.2, there is no allegation as to who at the District violated the standard of care, and the standard of care under common law is that there is no duty. (See *Doe v. United States Youth Soccer Assn., Inc.* (2017) 8 Cal.App.5th 1118, 1139 (“U.S. Youth

Soccer.”) In *U.S. Youth Soccer*, the plaintiff was a minor who was sexually abused by her coach, and the defendants included the national youth soccer organization (US Youth), with which the plaintiff's team was affiliated through its local league and state association. (*U.S. Youth Soccer*, 8 Cal.App.5th at p. 1122.) The plaintiff in *U.S. Youth Soccer* claimed that the defendants had a duty to protect her by “warn[ing], train[ing], or educat[ing] her (either directly or through her parent or adult employees or team volunteers) about the risk of sex abuse in their programs from their coaches and of its guidelines to protect her and best practices for youth to avoid abuse.” (*Id.*, at p. 1138.) The Court of Appeal found that implementing such a program would be “extraordinarily burdensome” on the defendants. (*Id.* at p. 1139.) Balancing that burden against the level of foreseeability of sexual abuse, it found the scope of the defendants’ duty to protect the plaintiff did not include creating and implementing a sexual abuse education program. (*Ibid.*) Thus, there is no common law duty applicable to RUSD, particularly back in the 1990s. In short, this particular claim is not based on a school administrator’s failure to adequately supervise or control Torres (as required by *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861 (“C.A.”)), but rather on some requirement that an unnamed Doe employee of the RUSD should have taught elementary school students how to avoid sexual abuse. While Government Code §815.2, subdivision (a) provides that “[a] public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative” (thereby laying the statutory framework for liability against the District based on negligent supervision and retention—claims which are not challenged in this demurrer), there is no direct statute that imposes any duty on an administrator to teach students to avoid sexual abuse, at least as in 1997 to 1999, that RUSD was required to follow.

Plaintiff argues that the case law such as *C.A.*, *supra*, and *M.W. v Panama Buena Vista Union School Dist.* (2003) 110 Cal.App.4th 508, provide a general duty to supervise students. (Opp., at p. 12.) But neither of those cases states that school districts must train, warn, and educate students from the late 1990s/early 2000s regarding potential dangers of its own employees or

even third parties. There can be no separate cause of action without a statute. Therefore, the Court SUSTAINS the demurrer to the fourth cause of action for failure to warn, train or educate with 20 days leave to amend. Because of the strong liberal policy of amendment, it is appropriate to give Plaintiffs one more opportunity to amend to identify the specific statutes or enactments that may impose legal duties upon the District.

9th and 10th Causes of Action. These causes of action are listed in the Complaint at ¶¶ 141-152.

The Sexual Harassment and Abuse in Educational Setting alleges that Plaintiff was harmed by being subject to harassment at BES and within RUSD and Defendants are responsible for the harm. Torres perpetuated the abuse and Defendants had actual knowledge that sexual abuse was occurring and acted with deliberate indifference to the alarms. The failure to perform mandatory duties cause of action argues Defendants failed to follow the statute.

Education Code section 200 states the policy of the State is to provide equal rights and opportunities in educational institutes, and the purpose of the chapter is to prohibit acts contrary to that policy. Education Code section 201 declares the legislature's intent. These provisions note the purpose and intent to ensure discriminatory and harassment-free public schools.

Title IX, 20 U.S.C. §1681(a), prohibits based on one's sex from being excluded from participation in, the denial of benefits, or subject to discrimination under any education program or activity receiving federal funds. (See also *Roe v. Hesperia*, *supra*, 85 Cal.App.5th at p. 32.) One injured by sexual discrimination under this provision may bring a civil action for monetary damages.

(*Ibid.*) In particular, a student subject to sexual harassment by a teacher may sue the school district for damages. (*Franklin v. Gwinnett County Public School* (1992) 503 U.S. 60, 75; *Roe v. Hesperia*, *supra*, 85 Cal.App.5th at p. 32.)

Education Code section 220 prohibits a student from being subjected to discrimination based on various protective classifications, including gender, in any program conducted by an educational institution that receives or benefits from state financial assistance or enrolls students who receive state financial aid. The anti-discrimination provisions in the Education Code are like Title IX, i.e., they both are designed primarily to prevent recipients of state funding from using funds in

a discriminatory manner. (*Donovan v. Poway Unified School Dist.* (2008) 167 Cal.App.4th 567, 603.) Thus, Education Code section 220 is analogous to Title IX. (*Ibid.*)

The District argues the limitation period in section 340.1 does not apply whereby Government Code section 905, subdivision (m) does not apply. Code Civ. Proc., §340.1, subdivision (a)(2), is broad in covering all actions on an entity owing a duty whose wrongful or negligent act had the effect of legally causing childhood sexual abuse that led to the plaintiff's injuries. Childhood sexual assault is defined under the provision of the Penal Code, i.e., (i) procuring a child under 16 for lewd or lascivious acts [Pen. Code, §266j], (ii) incest [Pen. Code, §285], (iii) sodomy [Pen. Code, §§286, subds. (b)(1)-(2), (c), 311.4, subd. (d)(1)], (iv) lewd or lascivious acts with minors under 14 years of age with the intent of arousing, appealing to, or gratifying the sexual desires of that person [Pen. Code, §§288, subds. (a)-(b), 311.4, subd. (d)(1)], (v) the sexual intercourse [Pen. Code, §§289, subds. (h)-(j), 311.4, subd. (d)(1)], and (vi) molestation [Pen. Code, §647.6]. (Code Civ. Proc., §340.1, subd. (d) [2023].)

Now, the gravamen of Education Code sections 200, 201, and 220 and Title IX claims is to hold a school district liable for excluding a student from participating or receiving the benefits of school programs or activities because of his sex/gender. However, the gravamen of a section §340.1 type cause of action is holding a school district liable for its negligent behavior causing a child to be sexually molested, assaulted, sodomized, raped, etc. Thus, the predicated basis of liability under Education Code sections 200, 201, and 220 and Title IX are not founded within section 340.1. That means the limitation period does not apply. Furthermore, Education Code sections 200, 201, and 220 claim would require compliance with the Act. (*Fitzgerald v. Barnstable School Committee* (2009) 555 U.S. 246, 255 [noting a Title IX claim does not impose an administrative exhaustion requirement].)

A Title IX predicate theory borrows the limitation period for personal injury, which in 1997 (when the injury occurred) was 1 year. (*Stanley v. Trustees of California State University* (9th Cir. 2006) 433 F.3d 1129, 1134 [noting Title IX borrows the state's personal injury statute of limitations]; *Taylor v. Regents of University of California* (9th Cir. 1993) 993 F.2d 710, 711-12 [noting California's personal injury statute of limitation is 1 year].) Education Code sections 200,

201, and 220 are statutory claims, so they could be governed by section 338, subdivision (a), i.e., a 3-year limitation period, but if the liability they impose is founded in common law, then they are governed by the personal injury limitation period. (*West Shield Investigations and Sec. Consultants v. Superior Court* (2000) 82 Cal.App.4th 935, 952-53 [in addressing the Unruh Act stated, "Our analysis begins with a review of common law, because '[a] cause of action is based upon a liability created by statute "only where the liability is embodied in a statutory provision and was of a type which did not exist at common law."' [Citation.] Thus, where a cause of action is based upon a statute which did not 'create a new form of liability ... but merely codified and refined existing law,' the section 338 three-year limitations period for actions based upon statutory liability does not apply. [Citation.]"]].)

Furthermore, DOE was a minor in 1997, the statute of limitations would be tolled until he reached the age of majority. (Code Civ. Proc., §352, subd. (a).) Here, DOE was born in August 1989 (§1) so he turned 18 in August 2007. Applying a 1 and 3-year limitation period, DOE needed to file his Education Code section 220 claim and breach of mandatory duty claims under Education Code sections 200-201 and Title IX on or before August 2008 and August 2010. The Complaint was filed 15 years later. Therefore, the Court finds the 9th and 10th causes of action to be time-barred and SUSTAINS the Demurrer without leave to amend.

Seventh Cause of Action for IIED. As opposed to the claims above, this claim would seem to go hand and hand with a sexual abuse claim under Code Civ. Proc., §340.1. (See *Coats v. New Haven Unified School Dist.* (2020) 46 Cal.App.5th 415.) This cause of action is listed in the Complaint at §§ 127-135. To state an IIED claim, one must plead, (1) outrageous conduct by the defendant, (2) intentional or reckless causing emotional distress, (3) severe emotional distress, and (4) causation. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) Outrageous conduct is conduct that is beyond all possible bounds of decency and is regarded as atrocious and utterly intolerable in a civilized community. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51; *Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496.) The intentional or reckless cause concerns conduct intended to inflict emotional injury or conduct engaged in with the realization that injury will result. (*Christensen v. Superior Court*

(*Pasadena Crematorium of Altadena*) (1991) 54 Cal.3d 868, 903.) Furthermore, the intentional or reckless conduct must be directed at the plaintiff or occur in the presence of the plaintiff.

(*Ibid.*)

Here, Defendant District argues the IIED cause of action is improper because no statutory basis provided for it to be asserted against it. It is correct. When pleading a claim against a government entity, the statute or enactment that is claimed to establish the public entity's duty must be identified. (*Searcy v. Hemet Unified School District* (1986) 177 Cal.App.3d 792, 802.) No statute is identified here.

Per the Opposition, Plaintiff seeks to impose IIED liability under a vicarious liability theory. Per Government Code section 815.2, subdivision (a), a government employer may be vicariously liable for the acts and omissions of its employees who acted in the course and scope of his employment. (*C.A. v. William S. Hart Union School Dist.* (2012) 53 Cal.4th 861, 868 ["C.A."].) However, a teacher engaging in sexual harassment or abuse of a student is not a matter falling within the teacher's scope of employment to hold the employer vicariously liable for the teacher's misconduct. (*John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 447-53 ["*John R.*"]; *Steven F. v. Anaheim Union High School Dist.* (2003) 112 Cal.App.4th 904, 908-09 ["*Steven F.*"].) Nonetheless, a school district can be vicariously liable for the acts of supervisory and administrative employees who negligently hired, retained, and/or supervised another teacher/employee. (*C.A., supra*, 53 Cal.4th at pp. 865-66, 868-71.)

Under the above law, Defendant District cannot be held vicariously liable for any emotional distress damages allegedly caused by Torres sexually abusing DOE. Yet, arguably, it could be liable for any intentional, outrageous conduct directed toward DOE by a supervisory or administrative employee. The problem is the Complaint's allegations only plead intentional and outrageous conduct by Torres. The purported intentional and outrageous conduct by District supervisors or administrators is not directed toward DOE, but to purportedly other victims, or in engaging in a cover-up activity that is not demonstrated done in DOE's presence (Comp., ¶ 128). Thus, no factual predicate basis of intentional and outrageous conduct is pled by a supervisor or administrative District employee. As this is the first review, Plaintiff may be able to

cure. Therefore, the Court SUSTAINS the Demurrer to the Seventh cause of action with 20 days leave to amend.

MOTION TO STRIKE

RUSD seeks to strike the allegations that Torres was acting within the course and scope of his employment and are contrary to *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 452 which found that a teacher's sexual assault on a student is not within teacher's course and scope of employment. As such, RUSD moves to strike the following lines and/or paragraphs in the Complaint without leave to amend:

Request 1: Specifically, Pg. 3, ¶ 9, lines 18-21: states "TORRES was an teacher at BES employed, supervised, and overseen by RUSD and BES, and was under their complete control and/or active supervision."

Request 2: At page 4, ¶ 12, lines 5-12, Plaintiff alleges: "...At all times mentioned herein, there existed a unity of interest and ownership among Defendants and each of them, such that any individuality and separateness between Defendants ceased to exist. Defendants, and each of them, in-interest and/or alter egos of one another, in that they purchased, controlled, dominated and operated one another without any separate identity, observation of formalities, or other manner of division. To continue maintaining the facade of a separate and individual existence between and among Defendants, and each of them, would serve to perpetrate a fraud and an injustice."

Request 3: At page 4, ¶ 13, lines 14-16 states: "TORRES was an adult teacher, mentor, and advisor employee and/or agent of RUSD and BES, acting as an employee, agent, and/or servant of such and/or was under their complete control and/or supervision, as well as the complete control of the Board, Superintendent, and Assistant Superintendent of RUSD."

Request 4: At page 5 ¶ 19, lines 23-26 states: "In doing the things hereinafter alleged, Defendants and each of them, and TORRES, were acting within the course and scope of said

alternative personality, capacity, identity, agency, representation, and/or employment and were within the scope of their authority, whether actual or apparent.”

Request 5: At page 5-6 ¶ 20, lines 27-5 states: “Plaintiff is informed and believes, and on that basis alleges, that at all times mentioned herein, Defendants and each of them, and TORRES, were the trustees, partners, servants, joint venturers, shareholders, contractors, and/or employees of each and every other Defendant, and the acts and omissions herein alleged were done by them, acting individually, through such capacity and within the scope of their authority, and with the permission and consent of each and every other Defendant and that said conduct was thereafter ratified by each and every other Defendant, and that each of them is jointly and severally liable to Plaintiff.”

Request 6: At page 6-7, ¶ 27, lines 26-1: “TORRES . . . retained the power and control entrusted to him by BES and RUSD. In these roles, TORRES was under the direct supervision, employ, agency, and control of the RUSD, BES, and DOES 1-100...”

Request 7: At page 9, ¶ 37, subpart (a) states: “TORRES engaged in such activities with Plaintiff while acting in the course and scope of employment, agency, duties, and responsibilities with Defendants. . . TORRES engaged with Plaintiff in the course and scope of his duties as an (sic) teacher, advisor, and mentor.”

The main argument is the decision of *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 450-452 which states:

But although the facts of this case *can* be made to fit a version of the respondeat superior doctrine, we are unpersuaded that they *should* be or that the doctrine is appropriately invoked here. We draw our decision not from the various factual scenarios in which vicarious liability has or has not been imposed on employers for the torts of their employees, but instead from the underlying rationale for the respondeat superior doctrine. 9

"The principal justification for the application of the doctrine of *respondeat superior* in any case is the fact that the employer may spread the risk through insurance and carry the cost thereof as part of his costs of doing business." (*Johnston v. Long* (1947) 30 Cal.2d 54, 64 [181 P.2d 645].)

"Although earlier authorities sought to justify the *respondeat superior* doctrine on such theories as 'control' by the master of the servant, the master's 'privilege' in being permitted to employ another, the third party's innocence in comparison to the master's selection of the servant, or the master's 'deep pocket' to pay for the loss, 'the modern justification for vicarious liability is a rule of policy, a deliberate allocation of a risk. The losses caused by the torts of employees, which as a practical matter are sure to occur in the conduct of the employer's enterprise, are placed upon that enterprise itself, as a required cost of doing business.'" (*Hinman v. Westinghouse Elec. Co.* (1970) 2 Cal.3d 956, 959-960 [88 Cal.Rptr. 188, 471 P.2d 988], quoting Prosser, *Law of Torts* (3d ed. 1964) p. 471.) "Three reasons have been suggested for imposing liability on an enterprise for the risks incident to the enterprise: '(1) [It] tends to provide a spur toward accident prevention; (2) it tends to provide greater assurance of compensation for accident victims[;] and (3) at the same time it tends to provide reasonable assurance that, like other costs, accident losses will be broadly and equitably distributed among the beneficiaries of the enterprises that entail them.'" (*Perez, supra*, 41 Cal.3d at p. 967, quoting 5 Harper et al., *The Law of Torts* (2d ed. 1986) § 26.5, p. 21, fns. omitted.)

The first of these three considerations just noted plays little role in the allocation of responsibility for the sexual misconduct of employees generally, and with respect to the unique situation of teachers, indicates that untoward consequences could flow from imposing vicarious liability on school districts. Although it is unquestionably important to encourage both the careful selection of these employees and the close monitoring of their conduct, such concerns are, we think, better addressed by holding school districts to the exercise of due care in such matters and subjecting them to liability only for their own direct negligence in that regard. Applying the doctrine of *respondeat superior* to impose, in effect, strict liability in this context would be far too

likely to deter districts from encouraging, or even authorizing, extracurricular and/or one-on-one contacts between teachers and students or to induce districts to impose such rigorous controls on activities of this nature that the educational process would be negatively affected. 10

Nor is the second consideration -- the assurance of compensation for accident victims -- appropriately invoked here. The acts here differ from the normal range of risks for which costs can be spread and insurance sought. (See *Alma W.*, *supra*, 123 Cal.App.3d at p. 144.) The imposition of vicarious liability on school districts for the sexual torts of their employees would tend to make insurance, already a scarce resource, even harder to obtain, and could lead to the diversion of needed funds from the classroom to cover claims.

The only element of the analysis that might point in favor of vicarious liability here is the propriety of spreading the risk of loss among the beneficiaries of the enterprise. School districts and the community at large benefit from the authority placed in teachers to carry out the educational mission, and it can be argued that the consequences of an abuse of that authority should be shared on an equally broad basis. But the connection between the authority conferred on teachers to carry out their instructional duties and the abuse of that authority to indulge in personal, sexual misconduct is simply too attenuated to deem a sexual assault as falling within the range of risks allocable to a teacher's employer. It is not a cost this particular enterprise should bear, and the consequences of imposing liability are unacceptable.

In sum, we believe the Court of Appeal erred in looking mainly to the factual similarities between this case and *White*, *supra*, 166 Cal.App.3d 566, and in failing to consider whether the underlying justifications for the respondeat superior doctrine would be served by imposing vicarious liability here. We need not and do not decide whether *White* itself was properly decided or whether the job-created authority theory has any validity in evaluating vicarious liability for the torts of police officers. It suffices here to note that the authority of a police officer over a motorist -- bolstered most immediately by his uniform, badge and firearm, and only slightly less so by the

prospect of criminal sanctions for disobedience -- plainly surpasses that of a teacher over a student. The teacher's authority is different in both degree and kind, and it is simply not great enough to persuade us that vicarious liability should attach here for the teacher's tort. Furthermore, invoking respondeat superior here would raise an entirely different specter of untoward consequences, or interference with the purposes for which the authority was conferred in the first place, than might result from the imposition of vicarious liability in the limited context of a police officer's abuse of authority. We doubt that police departments would deprive their officers of weapons or preclude them from enforcing the laws, but we see a significant and unacceptable risk that school districts would be dissuaded from permitting teachers to interact with their students on any but the most formal and supervised basis.

The law seems clear. Thus, the Court GRANTS the motion to strike in part as to requests # 2, 4, 5, 6 and 7. RUSD cannot be liable for Torres' alleged conduct, but for the "negligence of administrators or supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student." (*CA v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 879.) The other requests just show that Torres was an employee of the elementary school and District. There can be no liability but for the negligence of administrators or supervisors in hiring, supervising, and retaining Torres.

RULING

For all the reasons set forth above, the Court:

1. FINDS a proper meet and confer;
2. SUSTAINS the demurrer to the fourth and seventh causes of action with 20 days leave to amend;
3. SUSTAINS the demurrer to the ninth and tenth causes of action without leave to amend;
4. GRANTS the motion to strike in part as to Requests #2, 4, 5, 6 and 7.